

about the female reproductive system, the Dalkon Shield and PID." (*Todd-Stenberg, supra*, 48 Cal.App.4th at 979.) While there may have been some idiosyncratic facts relevant to each plaintiff's claims, the essential basis for liability – product liability for a dangerous device that caused a particular disease in each plaintiff – were present in each action that was consolidated.

Seredkina also argues if the cases are litigated together there is a risk of prejudice. (Opp. p. 4, ll. 23-24.) The prejudice she identifies is potential delay in discovery. Though she does not elaborate on how and why consolidation will result in discovery delay and may result in a stay of the claims alleged in her action, the concern is apparently that Maschmeier's claims raise the risks of potential criminal liability for Yefanau. Yefanau has asserted that he has a risk of criminal liability based on Seredkina's claims in this action. The Court previously denied Yefanau a general stay of discovery based on fifth amendment issues and based on the pendency of the consolidation motion. (See 6/13/2025 OAH; Order Den. Ex Parte App. 9/25/2025. Seredkina has not demonstrated prejudice by consolidation of the actions, particularly prejudice sufficient to outweigh the benefits of consolidation under the circumstances.

4. 9:00 AM CASE NUMBER: C24-03541

CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.

***MOTION/PETITION TO COMPEL ARBITRATION (CONTINUED FROM 02.05.26)**

FILED BY:

TENTATIVE RULING:

Off calendar. Matter settled.

5. 9:00 AM CASE NUMBER: C25-00096

CASE NAME: LAFAYETTE LAND COMPANY, LLC VS. MANINDER DHANJU

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR DEFS**

FILED BY:

TENTATIVE RULING:

The motion of counsel Weston Law Group, PC and Stephanie Meyer to withdraw as counsel for defendant Maninder Dhanju is off calendar as moot, based on the substitution of counsel for Dhanju, filed December 9, 2025.

6. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a demurrer by defendant Jeffrey Rai to plaintiff Kenneth Rai's complaint. For the reasons set forth, the general demurrers to the first, second, third, and fourth causes of action are **sustained, with leave to amend**.

Background

Plaintiff Kenneth Rai alleges claims against his son Jeffrey Rai for breach of contract, fraud based on misrepresentation, and common counts for account stated and open book account. (For clarity, the Court in some instances will identify the parties by their first names Kenneth and Jeffrey given their

identical last names.) The disputes relate to a residential property located on Southwind Circle in Richmond (the "Property") and to an alleged agreement Plaintiff characterizes as a "promissory note" reflected in a December 8, 2004 letter attached as Exhibit A to the complaint (the "2004 Letter"). (Compl. ¶¶ 7, 9 and Exh. A.) Plaintiff alleges claims for breach of contract (1st C/A), account stated (3rd C/A) and open book account (4th C/A) for Jeffrey's alleged failure to repay \$400,000 which he alleges is the principal amount of the loan. Plaintiff also alleges a cause of action for fraud related to the Property, title to which was transferred to Jeffrey.

Legal Standards Governing Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not legal or factual conclusions or contentions of law. (*City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Julian v. Mission Community Hospital* (2017) 11 Cal.App.5th 360, 374.) The Court gives "the complaint a reasonable interpretation, reading it as a whole and its parts in their context. [Citation omitted.]" (*Evans v. City of Berkeley* (2006) 38 Cal. 4th 1, 6.) (*See also* Code Civ. Proc. § 452.)

In ruling on a demurrer, the Court also considers matters of which the Court can properly take judicial notice. (*Evans, supra*, 38 Cal.4th at 6; *Carloss v. County of Alameda* (2015) 242 Cal. App.4th 116, 123.) Though the Court deems the allegations of the complaint to be true, where exhibits are attached to the complaint, the Court also accepts the statements in the exhibits as true and gives them precedence to the extent they contradict the allegations pled in the complaint. (*Moran v. Prime Healthcare Management, Inc.* (2016) 3 Cal.App.5th 1131, 1145-1146; *Mead v. Sanwa Bank California* (1998) 61 Cal. App. 4th 561, 567-568 [stating "If the facts appearing in the attached exhibit contradict those expressly pleaded, those in the exhibit are given precedence same," but holding there was no contradiction in that case].)

To sustain a general demurrer based on the statute of limitations, it must "clearly and affirmatively" appear on the face of the complaint that the cause of action is time-barred, not that it might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232.) Demurrers for uncertainty are disfavored. (*Lickiss v. Financial Industry Regulatory Authority* (2012) 208 Cal.App.4th 1125, 1135; *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695 ["'[U]nder our liberal pleading rules, where the complaint contains substantive factual allegations sufficiently apprising defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or plaintiff given leave to amend.' [Citations omitted.]".])

Requests for Judicial Notice

Defendant requests judicial notice of Plaintiff's complaint and of a grant deed recorded September 18, 2017 from Kenneth T. Rai and Yuki S. Rai, Trustees of the Kenneth T. Rai and Yuki S. Rai Revocable Trust to Jeffrey L. Rai. (Def. RJN Exhs. A and B.) Plaintiff also filed a request for judicial notice of the complaint in support of his opposition. The Court **grants** the requests for judicial notice of the complaint, subject to the applicable limitations on judicial notice. (Evid. Code § 452(d); *StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 [judicial notice does not extend to the truth or proper interpretation of a pleading to the extent reasonably disputable]; *Fremont Indemnity Co. v.*

Fremont General Corp. (2007) 148 Cal.App.4th 97, 113-115 [same].)

Judicial notice of the grant deed may be taken under Evidence Code section 452(c). The Court **grants** the request for judicial notice of the grant deed attached as Exhibit B to defendant's request. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal. App. 4th 780, 802-803 [on demurrer, judicial notice of recorded trustee's deed upon sale and entity named as grantee]; *Linda Vista Village San Diego Homeowners Assn., Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184.) Plaintiff argues that extrinsic evidence cannot be considered in ruling on a demurrer, citing *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. That rule applies to evidence other than matters subject to judicial notice. (*Evans, supra*, 38 Cal.4th at 6 [affirming order sustaining demurrer to complaint based in part on documents subject to judicial notice, stating " '[A] complaint otherwise good on its face is subject to demurrer when facts judicially noticed render it defective.' [Citation.]" [Citations omitted.]"]; *Carloss, supra*, 242 Cal.App.4th at 123.)

Analysis

Defendant makes general demurrers to each cause of action on the grounds that Plaintiff fails to allege facts sufficient to state the causes of action and that the claims are barred by the applicable statute of limitations. Defendant also makes special demurrers to each cause of action for uncertainty.

A. Breach of Contract (1st C/A)

Plaintiff alleges that on or about December 8, 2004, Jeffrey "acknowledged that plaintiff transferred approximately \$400,000 of plaintiff's inheritance from his father" to Jeffrey "in exchange for a written promise by defendant to pay \$2,000 per month to plaintiff. The written promise was memorialized in a letter dated December 8, 2004," a copy of which is attached as Exhibit A to the complaint and which Plaintiff refers to as the "Promissory Note" and the Court will refer to as the "2004 Letter." (Compl. ¶ 9.)

1. Legal Framework of the Cause of Action

The essential elements of a cause of action for breach of contract are "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff. [Citations omitted.]" (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.) For any contract to be enforceable, it must be " 'sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached.' [Citation omitted.]" (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209.) The promise "must be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages. [Citations omitted.]" 'Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable.' [Citations omitted.] . . . 'If . . . a supposed "contract" does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.' [Citation omitted.]" (*Id.*)

Plaintiff characterizes the 2004 Letter as a promissory note, which is a form of contract for a loan,

which requires certain material terms to be enforceable. " 'Typically, a contract involving a loan must include the identity of the lender and borrower, the amount of the loan, and the terms for repayment in order to be sufficiently definite.' [Citations omitted.]" (*Westlands Water Dist. V. All Persons Interested* (2023) 95 Cal.App.5th 98, 127.)

2. Exhibit A Contradicts Some Allegations of the Complaint, and the Terms of the "Loan" and Repayment Are Not Sufficiently Definite to Be Enforced

The 2004 Letter states the letter represents the "personal agreement" among Jeffrey, Kenneth and Yuki Rai, Jeffrey's mother, in which Jeffrey "will pay approximately \$1000 per person (Ken & Yuki) per month to assist your living expenses in your retirement years . . ." (Compl. Exh. A [emphasis added].) The letter continues: "At this time, the annual tax exempt gift amount is \$11000 per person, per year. The total payment I make each year shall not exceed the annual tax exempt limit for individual gifting. The majority of the financial assistance I am able to distribute to you comes from an inheritance from Chao-Nin Rai (Jeff Rai's paternal grandfather and Ken Rai's father) which is approximately \$400,000 US dollars." (Compl. Exh. A [emphasis added].) Further, the letter states that "[f]luctuations on the monthly payments including monthly taxes, yearly taxes, and family needs may occur and shall be communicated by earnest effort. (Compl. Exh. A [emphasis added].)

Plaintiff's allegations characterizing the 2004 Letter are contradicted by the exhibit. Contrary to paragraph 9, the promise in the 2004 Letter is not to pay Kenneth \$2,000 per month, but rather to pay "approximately \$1000" per month to Kenneth and approximately \$1000 per month to Jeffrey's mother to "assist" with their living expenses in retirement expressly refers to potential "fluctuations on the monthly payments" based on taxes and "family needs." The 2004 Letter does not state when the monthly payments start or end, other than presumably on the death of each parent, when the parent's need for financial assistance in retirement would end. The 2004 Letter repeatedly refers to the payments in reference to the "gift" amount allowed as tax exempt and recognizes the monthly payments may fluctuate. There is no date stated on which the monthly amounts were due. It is not clear to the Court that the promise stated in the 2004 Letter is sufficiently definite to be enforced according to its terms in the absence of a definite monthly payment amount ("approximately \$1000" per month per person subject to fluctuations), payment start date, or payment end date.

Even if the 2004 Letter were reasonably susceptible to the interpretation Plaintiff alleges, namely that Kenneth transferred an inheritance from Jeffrey's grandfather to Jeffrey, despite the lack of an acknowledgement that the transfer was "in exchange" for the monthly retirement assistance payments or any reference to the funds being loaned to Jeffrey subject to a duty to repay, the 2004 Letter refers to the "approximately \$400,000" in inheritance funds Jeffrey received. Even if the 2004 Letter could be interpreted as Kenneth making a loan of the inheritance to Jeffrey, it does not provide a definite sum loaned as (a) it explicitly states the amount is an approximate number, and (b) it states the inheritance was to provide "the majority" of the funds Jeffrey had available to provide "financial assistance" to his parents during their retirement, suggesting the monthly payments would not be funded solely from the inheritance. There is no stated obligation in the 2004 Letter for defendant to pay or repay \$400,000 to either parent or any date when such repayment of the "principal" was allegedly due. Since the 2004 Letter provides for a monthly payment of \$1,000 to Plaintiff Kenneth, Plaintiff does not allege facts supporting that he alone is entitled to recover \$400,000 for breach of the 2004 Letter agreement, rather than perhaps half that amount, since he was to receive half the

amount of the monthly payments.

Having attached and incorporated the 2004 Letter as evidence of the alleged Promissory Note agreement and the "loan" terms, the Court cannot accept as true allegations contradicted by the 2004 Letter, absent other allegations addressing and explaining the discrepancies between the terms of the 2004 Letter and the claim made by Plaintiff. Without other allegations, the complaint does not allege facts sufficient to state a claim for breach of an agreement by defendant to repay \$400,000 that was owed to Kenneth based on the 2004 Letter.

For these reasons, the demurrer to the breach of contract cause of action is **sustained, with leave to amend.**

3. Statute of Limitations

As defendant argues, Plaintiff does not allege that Jeffrey made any monthly payments or annual payments under the 2004 Letter, or if payments were made, when the payments ceased. Plaintiff merely alleges that he demanded that defendant "repay the amounts due to plaintiff under the Promissory Note, or otherwise comply with the terms of the same" on July 17, 2024. (Compl. ¶¶ 10, 16.)

The promise in the 2004 Letter is for Jeffrey to make approximate monthly payments of \$1,000 per parent indefinitely without a specific start date and tied to the parents' retirement. Plaintiff alleges as of the date the complaint was filed in 2025, he was 91 years old, so he was roughly 70 when the 2004 Letter was given by Jeffrey. There is an inference from the fact Plaintiff claims \$400,000 is due that no monthly payments were made, or that Jeffrey stopped making monthly payments under the 2004 Letter many years ago. If monthly payments had been made as stated in the 2004 Letter assuming they started in January 2005, that no fluctuations were made to the "approximate" monthly amount or based on "family needs," and that the annual cap on payments remained \$22,000 based on the gift tax exemption also stated in the letter, by June 2024, Jeffrey would have made well over \$400,000 in payments.

Plaintiff acknowledges the statute of limitations on a cause of action for breach of contract accrues when the party with the claim can commence the action which occurs when the last "essential element" of the cause of action occurs. (*Spear v. California State Auto. Assn.* (1992) 2 Cal. 4th 1035, 1040.) In the case of breach of contract, the statute of limitations does not accrue until there has been a breach. (*Id.* at 1042.)

Plaintiff relies on the continuous accrual doctrine to assert the breach of contract claim is timely within the statute of limitations, citing *Esparza v. Safeway* (2019) 36 Cal.App.5th 42, a decision addressing wage and hour claims in violation of the Labor Code brought under the Private Attorney General Act, Labor Code section 2698 *et seq.* The Court explained, "Generally, a statute of limitations begins to run when a cause of action accrues, meaning when the cause of action is complete with all of its elements. [Citation omitted.] Violations of a continuing or recurring obligation may give rise to 'continuous accrual' of causes of action, meaning that 'a cause of action accrues each time a wrongful act occurs, triggering a new limitations period.' [Citation.]" [Citations omitted.]" (*Id.* at 59-60 [quoting *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1199].)

Aryeh involved a copier lease requiring monthly payments and is more analogous to this case and the

2004 Letter with its provision for monthly payments. The Court further explained in *Aryeh*, "[T]he theory of continuous accrual supports recovery only for damages arising from those breaches falling within the limitations period." (*Aryeh, supra*, 55 Cal.4th at 1199 [emphasis added].) The Court applied the continuous accrual doctrine to improper amounts the plaintiff claimed were included in the plaintiff's monthly payments due under a copier lease. "Canon billed Aryeh on a recurring monthly basis. . . . By its nature, the duty Canon owed—the duty not to impose unfair charges in monthly bills—was a continuing one, susceptible to recurring breaches. Accordingly, each alleged breach must be treated as triggering a new statute of limitations. [Citations omitted.] Aryeh cannot recover alleged excess charges preceding the four-year limitations period, but is not foreclosed from seeking recovery for charges to the extent they fall within that period. Because the complaint alleges excess charges within the four years preceding suit, it is not completely barred by the statute of limitations." (*Id.* at 1200-1201 [emphasis added].)

The statute of limitation on enforcement of an obligation in writing is four years. (Code Civ. Proc. § 337(a).) The 2004 Letter includes a recurring promise to make monthly payments to Plaintiff of approximately \$1,000 and to his wife in that approximate amount for retirement needs for an indefinite duration. Under *Aryeh*, applying the continuous accrual doctrine to the recurring obligation of the monthly payment, Plaintiff can potentially state a claim for breach that is not barred by the statute of limitations for recovery at least for those monthly payments that defendant committed to make to Kenneth during the four years preceding the filing of the lawsuit. The Court cannot conclude that the statute of limitations "clearly and affirmatively" bars any breach of contract claim for any amount arising under the 2004 Letter. (*Committee for Green Foothills, supra*, 48 Cal.4th at 42; *Lee, supra*, 61 Cal.4th at 1232.) The Court does not sustain the demurrer to this cause of action on statute of limitations grounds.

B. Fraud (2nd C/A)

The elements of a cause of action for deceit are " '(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.' [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) Fraud must be pled with specificity, which requires a plaintiff to plead "facts which show how, when, where, to whom, and by what means the representations were tendered." [Citations and internal quotation marks omitted.]" (*Id.* at 645 [emphasis added].)

The rule of liberal construction of pleadings does not apply to fraud claims. "[A] general pleading of the legal conclusion of fraud is insufficient. Every element of the cause of action must be alleged in full, factually and specifically." [Citation omitted.]" (*Tindell v. Murphy* (2018) 22 Cal. App. 5th 1239, 1249 [emphasis added].) (*See also Lazar, supra*, 12 Cal.4th at 645 (*Id.* ["In California, fraud must be pled specifically; general and conclusory allegations do not suffice."].)

1. Plaintiff's Allegations

The fraud claim is founded on transfer of title to the Property to defendant. The complaint alleges that Plaintiff obtained "full ownership" of the Property in February 2016. (Compl. ¶ 8.) He alleges that on or about November 1, 2024, Plaintiff discovered the Property had been transferred to Jeffrey. (Compl. ¶¶ 11, 20.) He alleges defendant was collecting rental income from the Property since

"approximately August 22, 2014." (Compl. ¶ 11 [emphasis added].)

Plaintiff alleges defendant "made representations to plaintiff that plaintiff would be allowed to retain the Property for plaintiff's entire life, and that defendant [i.e., Jeffrey] would transfer the Property to plaintiff's granddaughter upon plaintiff's death." (Comp. ¶ 11 [emphasis added].) (*See also* Compl. ¶¶ 20, 21.) He alleges again the representations were "false" because the Property had been transferred to Jeffrey, Jeffrey allegedly had been collecting rents from the Property since approximately August 2014, and Jeffrey intended the Property to be used for his own benefit. (Compl. ¶¶ 11, 21.)

2. Fraud Not Pled with Specificity as to All Elements

The fraud claim is not pled with specificity. Plaintiff does not allege (a) when Jeffrey allegedly made the false statements, (b) to whom the false statements were made, though presumably to Plaintiff but that is not alleged, and (c) how, in what manner, and by what means the false statements were allegedly made, such as in person, over the telephone, by email, or in some other way, or in some form of writing. These facts are essential to plead a fraud claim with specificity. (*Lazar, supra*, 12 Cal.4th at 645; *Tindell, supra*, 22 Cal.App.5th at 1249.)

It is not clear that the latter portion of defendant's alleged misrepresentation is false (i.e., that defendant would transfer the Property to the granddaughter after Plaintiff died, since the operative event has not occurred and Plaintiff has not alleged facts indicating defendant has denied that he would make such a transfer). Nevertheless, Plaintiff also alleges a misrepresentation by defendant that Plaintiff "would be allowed to retain the Property" for his entire life. That the Property title was transferred and the rents collected by defendant allegedly since August 2014 (Compl. ¶ 11), though the grant deed provided by defendant indicates the transfer was executed and recorded in 2017 (Def. RJN Exh. B), supports that this aspect of the alleged misrepresentation was false.

These allegations raise an additional ground for finding the fraud claim is not alleged with sufficient specificity, however, on the element of reasonable reliance. Plaintiff alleges that he relied on defendant's representation that Plaintiff would "retain the Property" for his entire life, but Plaintiff alleges he executed and recorded a deed transferring the Property to defendant allegedly in 2014, after which defendant allegedly collected the Property income (or in 2017 as the recorded grant deed shows). Conveying title to the Property to defendant years ago would seem to undermine Plaintiff's reasonable reliance on a representation Plaintiff would "retain" the Property until his death if he conveyed title to the Property to defendant. (Compl. ¶¶ 11, 20, 21, 23.) Plaintiff alleges he is "hard of hearing and has limited English proficiency," but Plaintiff does not allege that he did not know he was signing a grant deed and conveying title to the Property to defendant or that he did not intend to sign the grant deed. (Compl. ¶ 11.) He does not allege additional facts to state the reasonable reliance element of fraud that despite transferring title to the Property to defendant and defendant's alleged collection of the rents from the Property since 2014, he relied on defendant's representation that Plaintiff nevertheless would "retain" the Property for life.

On these grounds, the Court **sustains** the demurrer to this cause of action, **with leave to amend**.

The Court notes defendant's argument that his parents had the assistance of counsel in recording the document based on the identification of what may be a law firm under the line "recording requested by" on the grant deed. (Def. RJN Exh. B.) The Court cannot take judicial notice of the fact defendant asserts, i.e., that his parents received the advice or assistance of counsel in making the Property

transfer, from that reference in the recorded deed. The fact argued by defendant is beyond the scope of judicial notice, and a factual inference and interpretation of the document that is reasonably disputable. (*StorMedia, supra*, 20 Cal.4th 449, 457, fn. 9; *Linda Vista Village San Diego Homeowners Assn., supra*, 234 Cal.App.4th at 184.)

3. Statute of Limitations

The statute of limitations for fraud is three years, which runs from the date of discovery of the "facts constituting the fraud." (Code Civ. Proc. § 338(d).) Plaintiff contends that under the delayed discovery rule, the fraud cause of action is timely since Plaintiff alleges he did not discover the fraud until November 1, 2024.

"An important exception to the general rule of accrual is the 'discovery rule,' which postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action. [Citations.] [¶] A plaintiff has reason to discover a cause of action when he or she 'has reason at least to suspect a factual basis for its elements.' [Citations omitted.]" (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) A potential plaintiff "discovers the cause of action when he at least suspects a factual basis, as opposed to a legal theory, for its elements, even if he lacks knowledge thereof—when, simply put, he at least 'suspects . . . that someone has done something wrong' to him [citation], 'wrong' being used, not in any technical sense, but rather in accordance with its 'lay understanding' [citation omitted]." (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397–398.)

The California Supreme Court in *Fox* explained, "The discovery rule only delays accrual until the plaintiff has, or should have, inquiry notice of the cause of action. The discovery rule does not encourage dilatory tactics because plaintiffs are charged with presumptive knowledge of an injury if they have '[i]nformation of circumstances to put [them] on *inquiry*' [] or if they have '*the opportunity to obtain knowledge* from sources open to [their] investigation.' [Citations, internal quotation marks omitted, italics in original.] In other words, plaintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an investigation." (*Fox, supra*, 35 Cal.4th at 807-808.) (*See also Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35 [the date the statute of limitations on fraud starts to run is "the date the complaining party learns, or at least is put on notice, that a representation was false." [Emphasis added.]])

Further, to plead the delayed discovery rule, " '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation omitted.] In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' [Citation omitted.]" (*Fox, supra*, 35 Cal.4th at 808 [emphasis added].)

Though Plaintiff alleges he did not discover the falsity of defendant's representations until November 1, 2024, the allegations of the complaint show on their face contrary facts that Plaintiff would have had at a minimum inquiry notice of facts indicating he had not "retained" the Property. Plaintiff alleges defendant "brought Plaintiff to the County Recorder's office" where he supposedly signed the deed to the Property to defendant in August 2014 (or 2017), which would have made defendant's representation Plaintiff would retain the Property for the rest of his life false. More important,

Plaintiff alleges defendant, and not Plaintiff, was collecting all the rents and income from the Property since August 2014, a fact clearly inconsistent with Plaintiff's "retaining" the Property for the rest of his life if beginning in August 2014, Plaintiff was no longer collecting and receiving the rents or income from the Property. (Compl. ¶¶ 11, 12.)

Inquiry notice arose, based on Plaintiff's allegations, on August 22, 2014 when defendant allegedly began collecting the rents for his own use and benefit rather than Plaintiff. (Compl. ¶ 11.) On the face of the complaint, the fraud claim would have accrued in August 2014 (or 2017) when Plaintiff alleges he transferred the Property and defendant was collecting and receiving the Property income. If Plaintiff contends that he could not have discovered that defendant had been granted title and was collecting the rents for more than ten years preceding November 1, 2024, then Plaintiff "must specifically plead facts to show . . . [his] inability to have made earlier discovery despite reasonable diligence." (*Fox, supra*, 35 Cal.4th at 808.)

The demurrer to the second cause of action is also **sustained** on the ground of the statute of limitations, **with leave to amend**.

C. The Common Counts (3rd and 4th C/As)

In support of the demurrer to these counts, defendant cites *McBride v. Boughton* (2004) 123 Cal.App.4th 379, in which the Court explains that "[w]hen a common count is used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable. [Citations omitted.]" (*Id.* at 394-395.) Plaintiff does not address this decision or the proposition stated in his opposition. The common count claims are founded on the same allegations and facts regarding the alleged Promissory Note stated in the first cause of action, which the Court found deficient. The Court also finds these causes of action deficient for other reasons stated below.

1. Account Stated (3rd C/A)

"The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due. [Citations omitted.]" (*Zinn v. Fred R. Bright Co.* (1969) 271 Cal.App.2d 597, 600 [emphasis added].) (*See also Trafton v. Youngblood* (1968) 69 Cal.2d 17, 25 ["An account stated is an agreement, based on prior transactions between the parties, that all items of the account are true and that the balance struck is due and owing from one party to the other." (Emphasis added.)].) The California Supreme Court explained:

The theory upon which the action on an account stated is allowed is that transactions have occurred between the parties from which the relation of debtor and creditor has arisen, that thereafter one or both have rendered or made statements or declarations specifying definitely the amount due on account thereof and thereupon there has been an agreement, express or implied, by the one who is the debtor, to the other, that a certain sum is due from him on such account, together with an express or implied promise to pay the same. The action is based on the promise to pay thus established,

and if it is not expressly made, facts from which such promise will be implied must be proven.

(*Bennett v. Potter* (1919) 180 Cal. 736, 745 [emphasis added] [account stated cannot become a substitute for an action on a written contract with a promise to pay].)

Plaintiff has not alleged that he submitted periodic account statements or other writings to defendant setting forth a definite amount due and that defendant agreed to the amount owed or failed to object to those statements within a reasonable time so as to create an express or implied agreement to an "account stated" for the amounts subject to this claim. (*Zinn v. Fred R. Bright Co.*, *supra*, 271 Cal.App.2d at 600.) Further, the amount "due," or at least the amount defendant indicated he would pay as financial assistance to Plaintiff as reflected in the 2004 Letter, is not specific or definite but rather "approximate" and subject to potential fluctuations. (Compl. ¶ 9 and Exh. A, incorporated by reference at ¶ 25.) The 2004 Letter refers to defendant making payments monthly in the "approximate" amount of \$1,000 to Plaintiff, and to defendant having received "approximately" \$400,000 as an inheritance. Plaintiff does not allege facts sufficient, in the face of the 2004 Letter attached to the complaint, to state a cause of action for account stated based on an express or implied agreement by defendant to pay Plaintiff \$400,000.

The demurrer to the third cause of action is **sustained, with leave to amend**, on the foregoing grounds. The Court does not sustain the demurrer based on the statute of limitations as the Court cannot determine that a claim for account stated is "clearly and affirmatively" time-barred in all respects. (Code Civ. Proc. § 337(b) [four years].)

2. Open Book Account (4th C/A)

A "book account" is defined in Code of Civil Procedure section 337a as "a detailed statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation, and shows the debits and credits in connection therewith, and against whom and in favor of whom entries are made, is entered in the regular course of business as conducted by such creditor or fiduciary, and is kept in a reasonably permanent form and manner and is (1) in a bound book, or (2) on a sheet or sheets fastened in a book or to backing but detachable therefrom, or (3) on a card or cards of a permanent character, or is kept in any other reasonably permanent form and manner." (Code Civ. Proc. § 337a(a).)

The complaint does not allege facts regarding any statement or book maintained reflecting transactions and debits and credits between Plaintiff and defendant on which the open book account cause of action is based. The complaint therefore does not state facts sufficient to state this cause of action, and the general demurrer to this cause of action is **sustained, with leave to amend**. The Court does not sustain the demurrer based on the statute of limitations as the Court cannot determine that a claim for open book account is "clearly and affirmatively" time-barred in all respects. (Code Civ. Proc. § 337(b) [four years].)

Additional Comments on Leave to Amend the Third and Fourth Causes of Action

Plaintiff has asserted two specific common counts, and for the reasons explained, the complaint does not state the facts essential to stating a cause of action for account stated or open book account. The breach of contract cause of action, the facts on which these two causes of action are also founded, is

defective for the reasons stated. If Plaintiff files an amended complaint, Plaintiff may be able to allege facts to state common counts other than account stated and open book account based on the current and additional facts Plaintiff may set forth. Leave to amend as to the common counts shall include leave to amend to allege common counts other than the ones currently pled in the complaint.

Special Demurrers for Uncertainty

Having sustained a general demurrer to each of the four causes of action as stated above, the Court does not reach the special demurrer for uncertainty to those causes of action.

7. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

***HEARING ON MOTION IN RE: STRIKE**

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a motion by defendant Jeffrey Rai to strike portions of plaintiff Kenneth Rai's complaint. For the reasons set forth, the motion is **denied as moot** based on the Court's concurrent ruling on the defendant's demurrer.

8. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY:

TENTATIVE RULING:

The motion to be relieved as counsel for Priscella Percy, brought by Khaldoun Baghdadi of Walkup, Melodia, et al., and Mikal Watts of Watts, LLP, is granted. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.

9. 9:00 AM CASE NUMBER: MSC16-02404

CASE NAME: ACOSTA VS REMINGTON LODGING

***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

Plaintiff Rina Acosta moves for preliminary approval of her class action settlement with defendant Remington Lodging & Hospitality, LLC. Preliminary approval was granted on September 12, 2025. Plaintiff separately moved for attorney's fees, costs and a service award. That motion initially was set by the clerk's office for a hearing on July 9, 2026. In order to hear the two motions together, the Court reset the hearing on the fee motion to February 19, 2026. The two motions will be considered together.

A. Background and Settlement Terms

The original complaint was filed by plaintiff on December 20, 2016, raising class action claims and PAGA claims on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various